

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. f/k/a/ BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**RESPONDENTS' PARTIALLY UNOPPOSED¹ MOTION TO
EXTEND DEADLINE AND INCREASE PAGE LIMIT**

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) respectfully move to extend the deadline to file exceptions in this case under 46 C.F.R. ¶ 502.227(a) from 22 to 82 days and to increase the page limit for exceptions under 46 C.F.R. § 502.227(e) from 50 to 100 pages.

Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. filed its Verified Complaint against Respondents on April 27, 2023. After dozens of depositions were taken, hundreds of thousands of pages were produced, and hundreds of pages of briefing were submitted, the deadline for the issuance of the initial decision was set as February 28, 2025. The deadline was thereafter extended three times. First to September 29, 2025, then to January 29, 2026, and ultimately to April 29, 2026.

The Presiding Officer issued her 203-page Initial Decision on April 24, 2026. The Initial Decision includes rulings on motions to strike, for confidentiality, and for reparations and awards Complainant in excess of \$45 million. Due to the size of the record, the amount of the award, and the number and complexity of the issues, and the length of the ALJ’s

¹ This corrected motion is filed to note in the caption that the motion is partially unopposed. Complainant consents to the extension of time but opposes the page limit extension.

decision, Respondents assert that good cause exists to extend the deadline to submit exceptions and to increase the page limit for same. The relief sought will permit the parties to fully evaluate the Initial Decision and the record and adequately prepare exceptions for consideration by the Commission.

For the reasons set forth above, Respondents respectfully request that the Commission extend the deadline for each party to submit exceptions to the Initial Decision by 60 days, setting a deadline of July 15, 2026, increase the page limit for such exceptions to 100 pages, and for all such other and further relief, which may be just and proper.

DATED: April 28, 2026

Respectfully submitted,

/s/ Keith B. Letourneau

Matthew Thomas

matthew.thomas@blankrome.com

Keith B. Letourneau

keith.letourneau@blankrome.com

BLANK ROME LLP

1271 Avenue of the Americas

New York, NY 10020

JEFFREY/FENNEMAN LAW + STRATEGY PLLC

Rebecca A. Fenneman

rfenneman@jeffreyyfenneman.com

Eric C. Jeffrey

ejeffrey@jeffreyyfenneman.com

700 12 St. NW, Suite 700

Washington, DC 20005

CERTIFICATE OF SERVICE

I hereby certify that on the 28th day of April 2026, a true and correct copy of the foregoing Motion to Extend Deadlines and Increase Page Limit was served by email on all counsel of record

in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

Karl C. Huth
huth@huthreynolds.com
Matthew J. Reynolds
reynolds@huthreynolds.com
Gregory A. Crapanzano II
gcrapanzano@huthreynolds.com
J. Lee Hill
lhill@huthreynolds.com

41 Cannon Court
Huntington, NY 11743

/s/ Keith B. Letourneau
Keith B. Letourneau

CERTIFICATE OF CONFERENCE

On April 24 and 27, 2026, the undersigned counsel communicated with Complainant's counsel to ascertain whether Complainant would consent or oppose the foregoing motion. Complainant does not oppose the extension of time but does oppose the page limit extension.

/s/ Keith B. Letourneau
Keith B. Letourneau